

Writ Petition. No.17775/2009

Shaukat Ali, etc.

Mst. Haleema Bibi etc.

18. 01.04.2014. Mr.Ghulam Farid Sanotra, Advocate for the petitioners.
Malik Mubarak Ali Advocate for the respondents.
Mr. Ashfaq Ahmad Kharal, Assistant Advocate General.

Through the instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 the petitioners have challenged the vires of order dated 26.05.2009 and order dated 14.6.2003 passed by the learned Member (Judicial-I) as well as by the learned Member (Judicial-III), Board of Revenue, Punjab, Lahore whereby dismissed the Review Petition as well as the Revision Petition of the petitioners.

2. Brief facts of the case are that the consolidation scheme of Mauza Chaurra, District, Narowal was confirmed on 27.03.1993 under Section 10(3) of the Consolidation of Holding Ordinance, 1960 by the Consolidation Officer. Respondents No.1 to 15 filed an appeal before the Additional Deputy Commissioner (Consolidation) against the order of Consolidation Officer dated 27.03.1993.

The appeal was time barred, however, delay in filing the appeal was condoned by the Additional Deputy Commissioner on 25.06.1995 and admitted the appeal for regular hearing. The order dated 25.06.1995 condoning the delay was not assailed by the petitioners, which ultimately attained finality. Later on the Additional Deputy Commissioner (Consolidation) rejected the appeal on 31.10.1996 whereupon respondents No.1 to 15 filed a revision petition before the Additional Commissioner (Consolidation) Gujranwala, who while accepting the revision petition amended the consolidation scheme on 24.01.1998. Ghulam Muhammad, predecessor-in-interest of the petitioners as well as the petitioners has unsuccessfully assailed the above said order in a revision petition under Section 13 of the Consolidation Ordinance, 1960 and review petition under Section 8 of the West Pakistan Board of Revenue Act, 1957 before the learned Member (Judicial-I) as well as before the learned Member (Judicial-III), Board of Revenue, Punjab, respectively, hence this petition.

3. Learned counsel for the petitioners has contended that the appeal filed by respondents No.1 to 15 was badly barred by time and this fact was ignored by the Revisional Court while

allowing the Revision Petition of respondents No.1 to 15. The learned counsel for the petitioners has further contended that under the law of Consolidation of Holdings Ordinance, 1960, no provisions exist qua filing of revision petition and order passed in favour of respondents No.1 to 15 in the Revision Petition on 24.01.1998 is illegal and passed without jurisdiction, therefore, the instant writ petition be allowed and impugned orders dated 14.06.2003 and 26.05.2009 be set aside and Revision Petition filed by respondents No.1 to 15 be dismissed and order dated 27.03.1993 be restored.

4. On the other hand, learned counsel for the respondents has opposed the writ petition by contending that delay in filing the appeal was condoned by the learned appellate forum and respondents No.1 to 15 filed the Revision Petition under Consolidation of Holdings Ordinance, 1960. He further contends that order passed by the learned Member (Judicial-III) is in accordance with law and he has neither committed any illegality nor the impugned orders suffer from any jurisdictional error.

5. I have heard the arguments advanced by the learned counsel for the parties and have perused the record.

6. From the record, it reveals that delay in filing the appeal was condoned by the Additional Deputy Commissioner (Consolidation) on 25.06.1995 with the conclusion that the appeal was admitted for regular hearing, which remained unchallenged and the same has attained finality.

7. Section 13(1)(b) of the Consolidation of Holdings Ordinance, 1960 empowers the Commissioner and Board of Revenue with revisional jurisdiction. The Consolidation of Holdings Ordinance, 1960 at the very outset provides that order passed in any proceedings under the Ordinance ibid by the Revenue or the Consolidation Officer can be revised or modified and as such the Revision Petition filed by respondents No.1 to 15 was maintainable. The revisional powers provided in Section 13 of the Consolidation of Land Holdings Ordinance, 1960 is very widely worded, which is reproduced hereunder:-

Section 13.

Power to call for an examine record.

- (1) The Board of Revenue may---
- (a) -----
- (b) *On application made to it in that behalf by a person aggrieved within 90 days of the passing of an order in any*

proceedings under this ordinance by any Revenue or Consolidation Officer, and after giving such person an opportunity of being heard, call for the record of such proceedings.

8. The perusal of order dated 24.01.1998 passed by the Additional Commissioner (Consolidation) Gujranwala reveals that he confined himself up to the land possessed and owned by respondents No.1 to 15 and the land given to the petitioners by the Consolidation Officer. The order dated 24.01.1998 through which modification has been made was subsequently confirmed in revision by the Board of Revenue, therefore, was not open to any exception. It reveals from the record that joint/mushtarka khata was divided and "Wandas" were prepared by the Consolidation Officer as per agreement between the parties and parties were bound by their agreement. The consent of the parties is proved from the record, as they put their signatures/thumb impressions in token of its correctness. The parties cannot revert from their agreement. This was totally uncalled for and legally untenable. It is an admitted fact that revision and review petitions filed by the petitioners have been concurrently dismissed on findings of facts. Keeping in view the facts and circumstances of the case, the learned counsel for the petitioners

has failed to prove any glaring mistake apparent on the face of the record as well as bring on record new material evidence for indulgence of this Court in the matter in its extraordinary writ jurisdiction. This Court can only consider the question of jurisdiction or illegality committed by the lower forum. Hence, I am of considered view that no jurisdictional error, illegality or irregularity is found in the impugned orders.

9. Consequently, the instant writ petition being meritless, is hereby **dismissed**.

(Aalia Neelum)
Judge

Approved for reporting.

Hamid/*